

Sheet 4, Attached to and made part of Lease No. GS-07B-16487
2.4 acres, Lot 2, Skaggs Alpha-Beta, 6715 Dallas Street, City of Ft. Smith, Arkansas

(a) The lease is subject to operating cost escalation. For operating cost adjustment, the operating costs are established at \$4.7483255 per rentable square foot. The base cost of services is established at \$71,600.00 based on \$4.7483255 for 15,079 rentable square feet.

(b) The lease is subject to real estate tax escalation. The base year is the first year of full assessment after construction of the building. For tax escalation in accordance with terms of Paragraph 3.4, the percentage of occupancy is 100 percent. The base year tax statement will be submitted within 60 days after payment to establish the base year taxes. If the tax statement is for multiple parcels or buildings, the value of each property shall be defined.

(c) The Adjustment for Vacant space is \$2.00 per rentable square foot to be applied if the space is vacated in whole or part.

16. In accordance with Paragraph 7.3, Overtime Usage, the overtime HVAC services will be provided at the rate of \$20.00 per hour. Overtime rates shall not be paid during normal building operation hours of 6:30 am to 5:30 pm Monday through Friday.

17. The annual rental rate is firm and will not be adjusted based on the mutual measurement, except as provided in clause 552.270-20, page 10, paragraph 26 of the GSA Form 3517B. The rate per square foot and the base year service cost will be modified to reflect the final measurement.

18. Construction drawings should be prepared and a pre-construction meeting scheduled with the contracting officer and agency personnel within approximately 90 days of the execution of this lease by the Government. Three copies of construction drawings should be sent to the contracting officer for review prior to the meeting.

19. The Lessor will provide 3 copies of a CAD "as built" disk to the contracting officer within thirty (30) days of completion of construction.

20. The Lessor will notify the contracting officer fourteen (14) days prior to scheduled completion of construction at 30 percent, 60, 90 and 100 percent completion for purposes of scheduling inspections.

21. Janitorial cleaning/maintenance is to be performed during daytime tenant working hours, Monday through Friday, except for Federal holidays.

22. In the event a deed to the leased premises is not delivered to Lessor, or if Lessor does not otherwise acquire marketable title to the leased premises within thirty (30) days after the date of execution of this lease by the Government, then this lease, at the option of the Government, may be declared null and void.

23. Paragraph 2 is deleted in its entirety and the following is substituted therefore:

"TO HAVE AND TO HOLD the said premises with their appurtenances for the term beginning on the date the Government accepts the lease premises. The date of substantial completion is estimated to be approximately 180 working days after the Notice to Proceed, for a term of fifteen (15) years, ten (10) years firm term, subject to terms stated within."

INITIALS	
GOV'T	LESSOR
KH	JS